

Effective Date: 01/01/2026

These Terms & Conditions (“Terms”) govern your use of the Automex website, mobile application, and all services we provide (“Platform”). By accessing or using Automex, you agree to be bound by these Terms. If you disagree with any part, please discontinue using the Platform.

This document is an electronic record under the Information Technology Act, 2000 and does not require any physical or digital signature.

1. Contractual Relationship

These Terms create a legally binding agreement between **Automex** (“**Company**”, “**we**”, “**us**”, “**our**”) and **you** (“**User**”, “**your**”) regarding the use of our Platform and automotive-related services.

By accessing any part of Automex, you acknowledge that you have read, understood, and accept these Terms.

The Company may modify these Terms at any time. Updated Terms will be posted on the Platform and will be effective immediately. Continued use of Automex constitutes acceptance of updated Terms.

2. Definitions

- **Platform:** Automex website, mobile site, mobile app, and all related digital environments.
- **Services:** Vehicle servicing, repairs, pickup & drop, inspections, maintenance, detailing, and other offerings made available through the Platform.
- **User Content:** Reviews, images, messages, vehicle information, or any material submitted by Users.
- **Third-Party Service Providers:** Independent workshops, technicians, towing partners, and other vendors that fulfil the actual services.

Automex is a **technology intermediary**, not the workshop performing repairs.

3. Eligibility

To use Automex:

- You must be **18 years or older**.
- You must be legally capable of entering into a contract as per the Indian Contract Act, 1872.

If using Automex on behalf of an organization, you confirm you are authorised to represent that entity.

4. Account Creation & Responsibilities

To access complete features, Users must create an account.

You agree to:

- Provide accurate and updated information
- Maintain confidentiality of login credentials
- Be responsible for all actions performed through your account

Automex is not liable for unauthorized account access arising from your negligence.

5. Nature of Services

Automex provides:

- A digital platform to connect Users with verified automotive service providers
- Pickup & delivery logistics for vehicles
- Estimates, service tracking, and payment options
- Vehicle document storage & reminders

Actual repairs, detailing, mechanical work, and diagnosis are performed by **third-party workshops**, not by Automex itself.

Automex is **not responsible** for workshop workmanship quality but will support Users in escalation and resolution.

6. Service Booking & Estimates

- Service estimates shown on the Platform are **approximate** and may change after vehicle inspection.
- Final costs are shared with the User for approval before work begins.
- Automex does not guarantee availability of time slots or parts.

If parts need replacement, the User will receive an updated estimate for approval.

7. Payments & Charges

Payments may be made through:

- UPI
- Net banking
- Cards
- Wallets
- Third-party payment gateways

You agree that:

- Payments are final and non-refundable unless explicitly approved.
- Non-payment may result in withholding vehicle delivery.
- Storage fees may apply if a vehicle is not collected on time.

Automex may act as a **limited payment collection facilitator** for workshops.

8. Cancellation & Refunds

Automex may cancel an order due to:

- Workshop unavailability
- Technical issues
- Unforeseen constraints

If Users request cancellation:

- Refunds depend on service stage
- Completed or in-progress work may not be refundable

Refunds, where applicable, are processed to the original payment method.

9. Prohibited Usage

You agree **not** to:

- Interfere with Platform functionality
- Upload false, misleading, or harmful content

- Use automated tools to scrape or extract data
- Violate intellectual property or privacy rights
- Engage in fraudulent or abusive behavior

Any violation may result in immediate account suspension.

10. User Content

Users may submit reviews, images, and feedback. By doing so, you grant Automex a worldwide, royalty-free license to use, display, and distribute such content.

You confirm that:

- You own the rights to the content you submit
- The content does not violate any law or third-party rights

Automex may remove content at its discretion.

11. Intellectual Property Rights

All Automex trademarks, branding, content, UI elements, and designs are owned by Automex.

You may not:

- Copy
- Modify
- Reproduce
- Distribute
- Create derivative works

...of any part of the Platform without written permission.

12. Third-Party Links & Content

The Platform may contain links to third-party websites or content. Automex is **not responsible** for:

- Accuracy
- Security

- Legality
- Quality

...of any third-party content.

13. Limitation of Liability

Automex is **not liable** for:

- Delays in service
- Workshop negligence
- Third-party actions
- Loss of data
- Indirect, special, incidental, or consequential damages

Maximum liability for any claim shall not exceed **₹1,000**.

14. Indemnification

You agree to indemnify Automex against claims arising from:

- Breach of these Terms
- Misuse of the Platform
- Violation of laws
- Infringement of third-party rights

15. Dispute Resolution

Disputes shall be resolved via:

- **Arbitration** under the Arbitration and Conciliation Act, 1996
- A sole arbitrator appointed by Automex
- Proceedings held in **English**
- Jurisdiction exclusively in **Bhubaneswar**

16. Governing Law

These Terms are governed by the laws of India.

17. Termination

Automex may suspend or terminate your account for:

- Violating Terms
- Misconduct
- Fraud
- Non-cooperation

Users may also request account deletion.

18. Force Majeure

Automex is not responsible for delays caused by:

- Natural disasters
- Wars
- Network outages
- Pandemics
- Government actions
- Any event beyond reasonable control

19. Free Pick-Up & Drop –

Liability Clause In the event of any accident, damage, or unforeseen mishap during the free pick-up and drop service, the vehicle owner's insurance company shall be responsible for coverage. AutoMex and its representatives shall not be liable for any such incidents.

20. Contact Information

For queries or complaints:

 sales@automex.in

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